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CONFIDENTIAL

July 3, 2024

Mr. Robert James McGovern

Email: jamesrobertmcgovern@hotmail.com

Ref. no.: 23-17345

Subject: Your complaint regarding the Direction générale de l'indemnisation des victimes d'actes criminels - conclusions

Dear Sir:

This is further to your request for intervention to the Protecteur du citoyen concerning the Direction générale de l'indemnisation des victimes d'actes criminels (hereinafter DGIVAC).

More specifically, you denounce the end of financial support for your son Barran.

For analysis purposes, we carefully examined the documents and information you provided to us. We also cross-checked with the body concerned and took the applicable normative, regulatory and legal framework into account.

Having completed the investigation, the Protecteur du citoyen now wishes to convey its conclusions.

On October 13, 2021, the *Crime Victims Compensation Act* was replaced by the *Act to assist persons who are victims of criminal offences and to facilitate their recovery* (hereinafter P-9.2.1). Applications for financial assistance received after October 13, 2021, are analyzed under P-9.2.1 and are limited to a maximum period of 3 years.

Without reviewing all the facts, the Protecteur du citoyen gathers that your son was the victim of a criminal act and that his application for benefits was accepted on September 20, 2021.

On October 18, 2021, DGIVAC issued a decision concerning your son's eligibility for temporary total disability (hereinafter TTD) status. This decision stated that your son qualified for TTD for a period of one week (from February 15 to 20, 2021). This decision never underwent administrative review.

On February 11, 2022, his eligibility for financial assistance was evaluated after a medical report dated November 4, 2021, was submitted. A decision was rendered on his eligibility for financial assistance to compensate for certain disabilities (hereinafter FACD) provided for in P-9.2.1. This decision states that FACD was to be paid retroactively to February 21, 2021.

On February 21, 2024, DGIVAC informed you that Barran no longer qualified for FACD because this financial aid cannot be paid for more than three years.

The Protecteur du citoyen considers that the termination of FACD complies with P-9.2.1 because this assistance cannot be granted for more than three years. Regarding TTD termination, the Protecteur du citoyen suggests that you contest the October 18, 2021 decision, and explain the delay for challenging it.

Although the Protecteur du citoyen is sensitive to your son's situation, it will not intervene further in Barran's case and the termination of FACD.

In light of the foregoing, the Protecteur du citoyen is closing the file.

Yours truly,

Julie Tessier
Delegate of the Protecteur du citoyen
Direction des enquêtes en administration publique